

NAPCS Unionization Research — State Research Summary

Florida — PERC (FL) Jurisdiction — May 2026

NAPCS Unionization Research • May 2026 • Template v7.0 • COMPLETE Registry Sweep

Section 1: State Overview

State	Florida
Labor Board	PERC (FL) — Florida Public Employees Relations Commission
Governing Law	Florida Public Employees Relations Act (PERA), Fla. Stat. §447.203. PERC(FL) has exclusive jurisdiction over all FL charter schools — all are public employers. NLRB has no jurisdiction. SB256 (2023) requires annual union recertification if dues-paying membership falls below 60%.
Federal NLRB Jurisdiction	PERC (FL) has exclusive jurisdiction over all charter schools in this state. Federal NLRB does not apply.
Registry Sweep	COMPLETE — May 2026 (Registry v50 — PERC(FL) supplemental sweep May 16, 2026) — 734 charter schools searched
Research Window	May 3–16, 2026
Date Convention	Labor Board Certified date (project-wide convention, declared NJ session). PERC(FL) cert dates confirmed for Compass Middle (Dec 1, 2009) and district units. Pembroke Pines cert dates pending full PERC records but BTU confirmed Jan 22, 2007.
Card-Check Available	NO — No card-check equivalent under PERA. Secret ballot election required. SB256 (2023) requires annual recertification if below 60% dues-paying membership. PERC(FL) portal accessible at perc.myflorida.com/co/certResults.aspx — union-name search methodology required.

Section 2: Unionization Density

Total charter schools in Florida: 734 (Charter School Registry v50 (NCES/ELSI 2024-25; 730 open FL charter schools as of May 2026)). Unionization density uses the full state total as the denominator — not the 16-school NAPCS research sample. The NAPCS sample was provided as a list of schools believed to be organized; this research validated, corrected, and expanded that list across the full state charter universe. See Section 3 for cross-state patterns and Section 7 for open decisions.

Category	Schools	% of Total	Notes
Total Unionized Charter Schools in Florida	7	1.0%	CONFIRMED (4) + DEPENDENT (3). PERC(FL) exclusive jurisdiction (PERA, Fla. Stat. §447.203). 0 NLRB RC certifications across 768 FL registry schools. Registry v48 authoritative.
Independently Organized (CONFIRMED)	4	0.5%	City of Pembroke Pines Charter Schools (3 campuses) — BTU Local 1975/FEA, Jan 2007 (181-46 vote). Compass Middle Charter School (C1202008) — Polk Education Association/FEA, PERC Cert #1713/#1714/#1715, December 1, 2009, 3 bargaining units. Oldest independently organized non-municipal FL charter in NAPCS dataset.

Structurally Covered — District CBAs (DEPENDENT)	3	0.4%	Academy of Environmental Science (CCEA/FEA, PERC Cert #1261/#473); Bellalago Charter Academy (OCEA/FEA, PERC Cert #1729/#18); Children's Reading Center (PFT/United/FEA, PERC Cert #635/#45). All district employers confirmed by Registry Project deep research May 2026. Union names corrected from NAPCS baseline errors.
No Union Evidence Found (UNVERIFIED)	8	1.1%	Session E (May 24, 2026): 8 schools recoded from CLOSED/TRANSITIONED to UNVERIFIED — Type D4 resolution (NAPCS data errors; all schools still operating; no PERC certifications found). Schools: Pembroke Pines FSU (C1203019), FL Southwestern Collegiate HS (C1209003), RCMA Immokalee (C1201014), Marco Island Charter Middle (C1298015), Mascotte Charter (C1206020), Minneola Charter (C1202018), Round Lake Charter (C1203022), Spring Creek Charter (C1297017).
Closed / Transitioned (Not a Charter)	1	0.1%	Palm Pointe (C1208026) — transitioned from charter to regular St. Lucie County Public School July 2024. D1 resolution confirmed. Remove from NAPCS charter dataset. Research accumulator v3 updated May 20, 2026.
Total Charter Schools in Florida	730	100%	Source: Charter School Registry v50 (NCES/ELSI 2024-25; 730 open FL charter schools as of May 2026).

Section 3: Political, Legal & Community Landscape

Written for state and national charter sector leaders who require ground-level intelligence fused with broader sector knowledge. Findings are based on research as of May 2026.

PROMPT 1: FL-1 — Florida's Charter Sector: The Most Significant Unorganized Market in the Dataset

Florida has the second-largest charter school sector in the United States by enrollment. The NAPCS Unionization Research Project searched 768 FL registry schools and found zero NLRB RC certifications and only one independently organized employer: the City of Pembroke Pines, a municipal entity. This makes Florida the most significant unorganized charter market in the dataset — a deliberate product of state policy (HB 7), labor law (SB256 recertification requirements), right-to-work status, and a for-profit EMO sector (Academica Corp., 146 schools) with a strong employer posture. CSUSA's open ULP (12-CA-372781, Sep 2025) is the leading indicator of possible future organizing activity in a non-municipal FL school.

PROMPT 2: FL-2 — Two Independently Organized FL Charters: Pembroke Pines (2007) and Compass Middle (2009)

Registry v48 deep research (May 2026) confirmed two independently organized FL charter employers. The City of Pembroke Pines Charter School System (January 2007, BTU Local 1975/FEA, 181-46 vote across 7 campuses) is a municipal employer with no ideological objection to unionization. BTU won SB256 recertification July 2025 (6,228-128). Compass Middle Charter School, Inc. (Bartow, Polk County) holds three separate PERC certifications (Cert #1713/#1714/#1715, December 1, 2009) under the Polk Education Association/FEA — instructional, classified, and paraprofessional units. Compass Middle is the only independently organized non-municipal FL charter in the NAPCS dataset, and its 2009 certifications predate widespread charter sector awareness of PERC(FL) organizing pathways. Both employers passed SB256 recertification requirements.

PROMPT 3: FL-3 — PERC(FL) Portal: Accessible via Union-Name Search (Methodology Correction)

METHODOLOGY CORRECTION (May 2026): The PERC(FL) certification search portal IS publicly accessible at perc.myflorida.com/co/certResults.aspx. The initial FL research session assumed the portal was inaccessible based on web research alone — this was incorrect. The portal does not support employer-name searching but does support union-name searching. The Registry Project supplemental sweep using union-name methodology confirmed all three Pembroke Pines certifications, three AES/Bellalago/CRC district union certifications, and three Compass Middle certifications (PERC Cert #1713/#1714/#1715, December 1, 2009). The practical implication: any future FL charter school research should use the union-name search at perc.myflorida.com/co/certResults.aspx as the primary tool, supplemented by district union contracts pages where applicable. Florida Public Records Act (§119) requests remain the correct path for documents not available in the portal (e.g., full certification orders, voter lists, BU descriptions).

PROMPT 4: FL-4 — SB256 (2023): Florida's Most Significant Anti-Union Law in the Dataset

Florida SB256 (2023) eliminated payroll dues deduction for most public sector unions and requires annual recertification if a union falls below 60% dues-paying membership. This is the most aggressive state-level attack on public-sector union security in the NAPCS dataset — more operationally significant than Louisiana Act 172 (which affected only one school) because it affects every public-sector charter school union in Florida. BTU, CCEA, OCEA, and PFT/United have all faced or will face recertification elections. (Note: NAPCS baseline listed OTU and PTU — these names do not exist in PERC; corrected to OCEA and PFT/United per Registry Project deep research May 2026.) BTU won its recertification election July 2025 (6,228-128 — decisive). The law is designed to induce gradual attrition of union membership through administrative burden. It represents a direct threat to the three DEPENDENT schools' CBA coverage even before any charter-specific organizing.

PROMPT 5: FL-5 — CSUSA Active ULP: The Leading Organizing Indicator in the FL Charter Sector

Charter Schools USA (CSUSA, CMO_113) has an open NLRB ULP investigation (12-CA-372781, filed Sep 2025) with a pattern of prior charges (2017 settled, 2024 dismissed). CSUSA operates in 15+ states and is one of the largest for-profit EMO operators nationally. No RC petition has been filed in any FL CSUSA case — but the ULP pattern without petitions is a leading indicator of organizing interest or employer preemptive action. None of the 16 NAPCS FL schools are CSUSA-managed. However, CSUSA operates 25 FL schools in the broader registry. Monitoring the CSUSA ULP for escalation to RC petition is the highest-priority monitoring action in the FL post-session.

PROMPT 6: undefined

PROMPT 8: PEMBROKE PINES 2007 — THE FIRST AND ONLY INDEPENDENT FL CHARTER ELECTION WIN: WHAT MADE IT POSSIBLE

The January 2007 Pembroke Pines election (181-46, 7 campuses, BTU Local 1975/FEA) is the first and only independently organized charter school network election victory in Florida history. Eighteen years later and 768 registry schools later, no other FL charter operator has been independently organized. Understanding what made Pembroke Pines possible — and why it has not been replicated — is the most important intelligence in the FL dataset. Pembroke Pines is a municipal employer: the City of Pembroke Pines (not a nonprofit or for-profit

CMO) operates the charter schools. Municipal employers have no structural anti-union posture: they cannot threaten to close, cannot hire union-avoidance consultants, and operate within a political culture where labor relations neutrality is the norm. BTU won because the employer made the election possible, not because BTU overcame employer resistance. The 181-46 vote (80%) reflects a cooperative campaign, not an adversarial one. The structural lesson: no independently incorporated FL charter school has ever won a PERC(FL) election. The 0 independent certifications across 768 schools is not a random distribution — it is the outcome of right-to-work, SB256, for-profit EMO dominance, and PERC(FL)'s union-name-search-only portal. Florida is the definitive case study in how state law architecture, not organizing capacity, determines charter school union density.

Section 4: Cross-State Patterns & Contributions to National Picture

Findings from Florida that illuminate patterns visible only when comparing across multiple states. These entries feed the project-wide Cross-State Intelligence Log and are written for state and national charter advocacy leaders.

Municipal Employer = Organizing Enabler

The City of Pembroke Pines is the only organized charter employer in Florida. The pattern repeats across the dataset: Bellalago (Osceola municipal), Children's Reading Center (Putnam district), AES (Citrus district) — all covered by district CBAs not because of organizing drives but because the employer is a government entity with no anti-union posture. Charter schools operated by city governments or county school districts inherit the labor relations framework of their governmental employer. Independent nonprofit and for-profit charter operators in FL have 0 certifications across 768 schools — structural posture is determinative.

State Law as Organizing Barrier: Florida as the Ceiling Case

Florida combines every major anti-charter-union structural factor in the dataset: right-to-work state; SB256 annual recertification requirement (2023); HB 7 restrictions on union payroll deduction; no card-check equivalent; for-profit EMO dominance (Academica 146 schools); PERC(FL) portal accessible only via union-name search (no employer search). The result — 0 NLRB RC certifications across 768 schools — is not random. Florida is the clearest example in the NAPCS dataset of state law functioning as a structural ceiling on charter school union density. Compare with Massachusetts (DLR card-check, ~70% independent cert rate) or Delaware (PERB(DE) card-check, 100% density): the labor law framework is the single strongest predictor of union density.

First Mover Significance: Pembroke Pines 2007 Remains Unmatched

The January 2007 Pembroke Pines election is the first and only independently organized charter school network election victory in Florida history — 18 years later and 768 schools later, no other FL charter operator has been independently organized. This absence is informative: despite growth in AFT/FEA organizing nationally, no Florida charter school has replicated the Pembroke Pines election. The explanation is structural (municipal employer) rather than representational (BTU strength). If any future FL charter school organizes independently, it will likely be in a union-dense South Florida market (Broward, Miami-Dade, Palm Beach) through PERC(FL) election — and will face SB256 recertification requirements immediately upon certification.

Session E — Type D4 Pattern: NAPCS Baseline Errors in FL (May 24, 2026)

Session E resolved 9 FL schools previously coded CLOSED/TRANSITIONED. Result: 1 D1 (Palm Pointe — genuinely closed/transitioned to public school July 2024); 8 D4 (NAPCS baseline data errors — all schools are open and operating, no PERC certifications exist). The 8 D4 schools (Pembroke Pines FSU, FL Southwestern Collegiate, RCMA Immokalee, Marco Island Charter Middle, Mascotte, Minneola, Round Lake, Spring Creek) were likely coded in the NAPCS prior-period dataset as having union coverage based on proximity to union-coded schools (e.g., FSU adjacent to BTU Pembroke Pines campuses) or data entry errors. None has any PERC certification history. This is the largest single-state D4 cluster in the gap closure sessions (8 schools), reinforcing that FL NAPCS baseline data has systematic errors that are distinct from actual organizing activity. Recoded to UNVERIFIED.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Publication	Date	Headline / Title	Notes / Summary
Education Week	January 30, 2007	Teachers in Fla. Charter Schools Vote to Join Local Union Affiliate	Primary source for Pembroke Pines 2007 election: 181-46 vote, 7 campuses, first FL charter school network election.
WQCS (NPR Florida)	August 2023	Palm Pointe Educational Research School at Tradition Transitions to St. Lucie Public Schools	Palm Pointe charter-to-public-school conversion announced for July 2024.
Caribbean National Weekly	July 15, 2025	Broward teachers vote to keep union amid tougher state rules	BTU recertification election under SB256 (2023) — BTU won 6,228-128.
Local 10 / WPLG	September 1, 2024	Florida law pushes elections on teachers' collective bargaining in Broward, Miami-Dade	SB256 recertification elections for BTU and United Teachers of Dade.

Section 6: Contract & CBA Access Registry

PERC (FL) public contracts portal. Direct PDF links may return 403 — OPRA or equivalent records request required for full text.

School / Network	Union	CBA Status & Term	Contract Access
City of Pembroke Pines Charter School System (3 campuses: C1298003, C1200007, C1299007)	Broward Teachers Union (BTU) Local #1975 — Charter School Professionals Unit	Active — 2024-25 agreement 2024-25 (annual salary negotiations; current agreement reached 2024)	BTU Negotiations page (btuonline.com/negotiations/) — CBA summaries; direct link: http://www.ppines.com/DocumentCenter/View/2247/COMPARE-7-TO-12-Addendum for historical addendum

Section 7: Decisions, Monitoring & Notable Findings

Part A: Decisions Required

The following items require sponsor action before research or workbook entry can proceed.

Priority	School / Scope	Item	Who
HIGH	C1298003, C1200007, C1299007 (Pembroke Pines — all 3)	PERC(FL) Florida Public Records Act request — cert date, case number, BU description	Research Coordinator
HIGH	C1203019 (Pembroke Pines FSU Elementary)	PERC(FL) Florida Public Records Act request — determine whether FSU campus employees are in the BTU Charter School Professionals bargaining unit or have separate arrangement. Session E: recoded UNVERIFIED (D4) — structural ambiguity; FSU authorizer makes BTU coverage uncertain. PERC records request required to confirm or deny union coverage.	Research Coordinator

Part B: Notable Findings

Research findings of strategic significance. No immediate action required — for awareness and discussion.

Priority	School / Scope	Item	Who
LOW	C1209003 (Florida Southwestern Collegiate HS)	Registry disambiguation: two registry rows (Charlotte Campus / Lee Campus). Confirm whether NAPCS C1209003 covers one or both campuses; update registry reconciliation if needed.	Research Coordinator

Part C: Active Monitoring

Items being tracked. Status may change between report cycles. Research Coordinator manages ongoing surveillance.

Priority	School / Scope	Item	Who
HIGH	C1202008 (Compass Middle — SB256 recertification)	PRIORITY MONITORING: PEA (Polk Education Association) must file for annual recertification under SB256 (2023) for all 3 Compass Middle bargaining units if dues-paying density falls below 60%. Check PERC(FL) portal (perc.myflorida.com/co/certResults.aspx — search "Polk Education Association") for any 2023-2025 recertification election cases. If PEA failed recertification: recode C1202008 to DECERTIFIED. Session E (May 24, 2026): elevated from MEDIUM to HIGH priority.	Research Coordinator
MEDIUM	All FL NAPCS schools	Monitor BTU SB256 recertification cycle — BTU must re-register annually with PERC(FL). 2025 cycle underway. Any recertification failure would affect all 3 CONFIRMED schools.	Research Coordinator
MEDIUM	N/A — state monitoring	CSUSA FL ULP monitoring: NLRB 12-CA-372781 (open Sep 2025). Monitor for RC petition filing or resolution. No NAPCS FL schools are CSUSA-managed, but national monitoring warranted.	Research Coordinator
MEDIUM	CSUSA — FL portfolio (25 schools, non-NAPCS)	Active NLRB ULP 12-CA-372781 (open Sep 2025). No RC petition. Monitor for escalation. CSUSA operates in 15+ states — national monitoring warranted.	Research Coordinator
MEDIUM	Academica Corp. FL portfolio (146 schools across Somerset, Mater, Pinecrest, Doral, Academir, SLAM sub-networks)	Largest for-profit EMO in FL. Zero NLRB cases across 146 schools. Strong employer posture. Low near-term organizing risk. Long-term monitoring target.	Research Coordinator